

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF KINGS

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PHYLLIS KENDALL,

Plaintiff,

-against-

AMENDED
VERIFIED COMPLAINT

THE CITY OF NEW YORK,
NYPD DETECTIVE TEARLE CONNELL,
NYPD SGT. ROLETT CORDERO and
NYPD DETECTIVE MICHAEL KOBUS,

Index No. 506079/18

Defendants.

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Plaintiff, by her attorneys SIVIN & MILLER, LLP, as and for amended her
complaint herein, alleges as follows, upon information and belief:

THE PARTIES

1. That at all times herein mentioned, plaintiff was and is a resident of the County of Kings, City and State of New York.
2. That at all times herein mentioned, defendant The City of New York (hereinafter "the City") was and is a municipal corporation, duly organized and existing under and by virtue of the laws of the State of New York.
3. That prior to the institution of this action and within ninety (90) days from the dates when the causes of action accrued herein, a notice of claim and intention to sue was duly served upon and filed with the defendants on behalf of plaintiff; that this action was not commenced until the expiration of thirty (30) days after such notice of claim and intention to sue was presented and the defendants have neglected and/or refused to make adjustment or payment thereon, and this action is being commenced within one year and ninety days after the causes of action accrued herein.
4. That at all times herein mentioned, the City operated, controlled, managed and

maintained the New York Police Department (hereinafter the "NYPD").

5. That at all times herein mentioned, defendant NYPD Detective Tearle Connell (hereinafter "Connell") was and is a detective employed by the NYPD.

6. That at all times herein mentioned, Connell was acting within the course and scope of his employment with the NYPD.

7. That at all times herein mentioned, Connell was acting under color of state law.

8. That at all times herein mentioned, defendant NYPD Sgt. Rolett Cordero (hereinafter "Cordero") was and is a sergeant employed by the NYPD.

9. That at all times herein mentioned, Cordero was acting within the course and scope of his employment with the NYPD.

10. That at all times herein mentioned, Cordero was acting under color of state law.

11. That at all times herein mentioned, defendant NYPD Detective Michael Kobus (hereinafter "Kobus") was and is a detective employed by the NYPD.

12. That at all times herein mentioned, Kobus was acting within the course and scope of his employment with the NYPD.

13. That at all times herein mentioned, Kobus was acting under color of state law.

THE FACTS

14. Plaintiff repeats and realleges each and every allegation set forth above as though fully set forth at length herein.

15. That on December 27, 2016, in the County of Kings, City and State of New York, NYPD officers, including but not limited to Connell, Cordero, and Kobus, acting jointly and in concert with each another, forcibly entered plaintiff's residence without justification and without plaintiff's consent, and thereafter searched plaintiff's residence without justification and without plaintiff's consent.

16. That at the aforesaid time and place, the aforementioned officers (hereinafter referred to collectively as “the officers”), without a warrant, forcibly handcuffed, detained, arrested, and imprisoned plaintiff without plaintiff’s consent and without justification.

17. That plaintiff’s detention and imprisonment continued at various other locations, including a squad car and a police precinct.

18. That during their imprisonment of plaintiff, the officers told plaintiff that they would release her from custody if she assisted them in locating and capturing her son, whom the officers alleged was the real target of their operation.

19. When plaintiff failed to assist the officers to their satisfaction in their efforts to contact and capture her son, the officers kept plaintiff in custody, and on December 27, 2016 Connell issued a Desk Appearance Ticket to plaintiff, charging plaintiff with a crime of which she was innocent and of which Connell knew plaintiff to be innocent.

20. That thereafter, on January 27, 2017, Connell executed a Criminal Court Complaint in which he caused plaintiff to be charged with additional crimes of which plaintiff was innocent and of which Connell knew plaintiff to be innocent.

21. That in further support of the criminal prosecution, Connell and Kobus knowingly made false statements to the Office of the District Attorney and/or knowingly made false statements that they knew would be conveyed to the District Attorney, including that they recovered illegal drugs and illegal drug paraphernalia from inside plaintiff’s residence and that they field tested substances that they recovered from plaintiff’s residence and determined that those substances were illegal drugs.

22. That the aforementioned false statements and fabrications by Connell and Kobus constituted material evidence in the prosecution of plaintiff, and evidence that was likely to

influence a jury's decision on plaintiff's guilt or innocence.

23. That as a result of the false criminal charges that were initiated against plaintiff by Connell and the false statements made by Connell and Kobus, plaintiff was required to make numerous court appearances and suffered a deprivation of her liberty.

24. That at all times herein mentioned, Cordero approved the arrest and prosecution of plaintiff and approved the other aforementioned actions of the officers.

25. That at all times herein mentioned, Connell, Kobus, and Cordero were present and observed the illegal and unconstitutional conduct of their fellow officers, each had a reasonable opportunity to intervene to prevent and/or stop the illegal and unconstitutional conduct, and each intentionally failed and refused to take any actions to prevent and/or stop the illegal and unconstitutional conduct

26. That on or about March 19, 2018, all criminal charges against plaintiff were dismissed and the criminal proceeding terminated favorably to plaintiff.

27. That defendants' actions were intentional, spiteful, malicious, and without excuse of justification.

28. That defendants' actions were undertaken in a perverted manner to obtain a collateral objective, i.e., to attempt to coerce plaintiff into assisting the officers in locating, capturing, arresting, and convicting her son.

29. That defendants' actions were intended to cause plaintiff severe emotional distress, or at the very least were undertaken in disregard of a substantial possibility of causing plaintiff severe emotional distress.

30. That as a result of the actions of defendants, plaintiff sustained severe emotional distress, endured and will continue to endure pain and suffering and loss of enjoyment

of life, incurred and will continue to incur economic loss, and sustained other damages.

FIRST CAUSE OF ACTION AGAINST ALL DEFENDANTS
(Assault and Battery)

31. Plaintiff repeats and realleges each and every allegation set forth above as though fully set forth at length herein.

32. That the aforementioned actions of defendants constitute an assault and battery, for which Connell, Cordero, and Kobus and the other officers are liable under New York State law and for which the City is vicariously liable under the doctrine of respondeat superior.

SECOND CAUSE OF ACTION AGAINST ALL DEFENDANTS
(False Arrest/Imprisonment)

33. Plaintiff repeats and realleges each and every allegation set forth above as though fully set forth at length herein.

34. That the aforementioned actions of defendants constitute a false arrest and false imprisonment of plaintiff, for which Connell, Cordero, and Kobus and the officers are liable under New York State law and for which the City is vicariously liable under the doctrine of respondeat superior.

THIRD CAUSE OF ACTION AGAINST CONNELL, CORDERO, and KOBUS
(42 USC § 1983: Fourth and Fourteenth Amendment Violations)

35. Plaintiff repeats and realleges each and every allegation set forth above as though fully set forth at length herein.

36. That the aforementioned actions of Connell, Cordero, and Kobus constitute illegal searches and seizures of plaintiff and deprivation of liberty of plaintiff, in violation of rights guaranteed to plaintiff under the Fourth Amendment and Fourteenth Amendment to the U.S. Constitution, and entitle plaintiff to recover damages pursuant to 42 USC § 1983.

FOURTH CAUSE OF ACTION AGAINST ALL DEFENDANTS
(Intentional Infliction of Emotional Distress)

37. Plaintiff repeats and realleges each and every allegation set forth above as though fully set forth at length herein.

38. That the aforementioned actions of defendants constitute an intentional infliction of emotional distress, for which Connell, Cordero, and Kobus and the officers are liable under New York State law and for which the City is vicariously liable under the doctrine of respondeat superior.

FIFTH CAUSE OF ACTION AGAINST THE CITY
(Negligent Hiring, Training and Retention)

39. Plaintiff repeats and realleges each and every allegation set forth above as though fully set forth at length herein.

40. That the aforesaid incidents and resulting damage to plaintiff were due to the negligence of the City, its agents, servants and/or employees, in the hiring, training and retention of Connell, Cordero, and Kobus and the officers.

SIXTH CAUSE OF ACTION AGAINST THE CITY
("Monell" Claim)

41. Plaintiff repeats and realleges each and every allegation set forth above as though fully set forth at length herein.

42. That the aforesaid actions by Connell, Cordero, and Kobus and the officers were consistent with and in compliance with an authorized pattern and practice of the NYPD whereby persons of color would be arrested and charged with crimes by NYPD officers without probable cause, without reasonable suspicion, and without justification.

43. That the aforesaid actions by Connell, Cordero, and Kobus and the other NYPD

officers resulted from a deliberate indifference by the City to a pattern of unconstitutional conduct by Connell, Cordero, and Kobus and the other NYPD officers.

SEVENTH CAUSE OF ACTION AGAINST CONNELL, CORDERO, and KOBUS
(42 USC § 1983 Claim Based on Denial of Right to Fair Trial)

44. Plaintiff repeats and realleges each and every allegation set forth above as though fully set forth at length herein.

45. That the aforesaid actions by Connell, Cordero, and Kobus constitute a denial of plaintiff's right to a fair trial, in violation of plaintiff's rights under the Fifth, Sixth and Fourteenth Amendments to the United States Constitution, and entitle plaintiff to recover monetary damages under 42 U.S.C. § 1983.

EIGHTH CAUSE OF ACTION AGAINST ALL DEFENDANTS
(Malicious Abuse of Process)

46. Plaintiff repeats and realleges each and every allegation set forth above as though fully set forth at length herein.

47. That the aforesaid actions by defendants constitute a malicious abuse of process, for which Connell, Cordero, and Kobus are liable under New York State law and for which the City is vicariously liable under the doctrine of respondeat superior.

NINTH CAUSE OF ACTION AGAINST ALL DEFENDANTS
(Malicious Prosecution)

48. Plaintiff repeats and realleges each and every allegation set forth above as though fully set forth at length herein.

49. That the aforementioned actions of defendants constitute a malicious prosecution of plaintiff, for which Connell, Cordero, and Kobus and the officers are liable under New York State law and for which the City is vicariously liable under the doctrine of respondeat

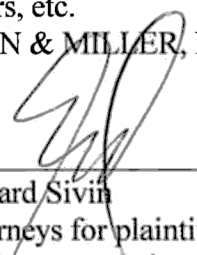
superior.

50. That all of the foregoing causes of action fall within one or more of the exceptions set forth in CPLR § 1602 with respect to joint and several liability.

WHEREFORE, plaintiff demands judgment against defendants, and each of them, on the foregoing causes of action for compensatory damages in an amount that exceeds the jurisdictional limitations of all lower courts that otherwise would have jurisdiction over this matter, and for punitive damages against defendants Connell, Cordero, and Kobus, and attorney's fees against all defendants pursuant to 42 USC § 1988, and plaintiff also demands the costs and disbursements of this action.

Dated: New York, New York
April 30, 2019

Yours, etc.
SIVIN & MILLER, LLP

By 
Edward Sivin
Attorneys for plaintiff
20 Vesey St., Suite 1400
New York, NY 10007
(212) 349-0300

VERIFICATION

EDWARD SIVIN, an attorney duly admitted to practice law in the State of New York, hereby affirms the following, under penalty of perjury:

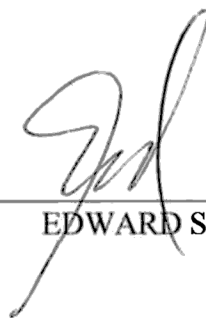
That I am the attorney for the plaintiff(s) in the within action.

That I have read the foregoing amended complaint and know the contents thereof; that the same is true to my own knowledge, except as to the matters therein stated to be upon information and belief; and as to those matters I believe it to be true.

That the reason this verification is made by your affirmant and not by the plaintiff(s) is that plaintiff(s) does not reside in the County where your affirmant maintains his office.

That the grounds for your affirmant's belief as to all matters not stated upon my knowledge are as follows: records, reports, facts and documents contained in plaintiff(s) file maintained by your affirmant's office.

Dated: New York, New York
April 30, 2019



EDWARD SIVIN